

waste (*g*), and a direction to settle to the separate use without power of anticipation is inconsistent with a life estate without impeachment of waste (*h*).

* **Limitation to preserve contingent remainders.**—Be- [*121] fore 8 & 9 Vict. c. 106, the Court took care that proper limitations to *trustees* should be inserted after the life estates for the preservation of contingent remainders (*a*); and although, by the effect of the Act referred to, contingent remainders are no longer destructible by the *forfeiture*, *merger*, or *surrender of the previous life estate*, the limitations to trustees to preserve may still, it is conceived, be properly interposed, with the view of affording a convenient means of protecting the interests of contingent remaindermen in the event of wilful waste or destruction being committed by the tenant for life before any remainderman comes *in esse* (*b*).

19. **First freehold in trustees.**—In a case occurring before the Fines and Recoveries Act, (3 & 4 W. 4. c. 74), where the testator had shown an anxious wish that the power of defeating the entail should be as much restricted as possible, the Court, instead of giving the first freehold to the tenant for life, which would have enabled him to make a tenant to the præcipe, ordered the freehold during his life to be vested in *trustees* in trust for him (*c*).

Protector.—However, in a case occurring after the Fines and Recoveries Act, where an estate was vested in a trustee upon trust to execute a strict settlement on Lady Le Despencer and her family, and the Master, to whom a reference was directed, approved of a settlement on Lady Le Despencer for life, &c., but refused to appoint a *protector* under the 32nd section of the Act, the Court held that, though in certain cases it might be advisable to appoint a protector, there should be special circumstances to warrant it; that

(*g*) *Stanley v. Coulthurst*, 10 L. R. Eq. 259; *Davenport v. Davenport*, 1 H. & M. 779.

(*h*) *Clive v. Clive*, 7 L. R. Ch. App. 433.

(*a*) *Harrison v. Naylor*, 2 Cox, 247; S. C. 3 B. C. C. 108; *Woolmore v. Burrows*, 1 Sim. 512; *Baskerville*

v. Baskerville, 2 Atk. 279; *Trevor v. Trevor*, 13 Sim. 108; *Stamford v. Hobart*, 3 B. P. C. 31; and see *Hopkins v. Hopkins*, 1 Atk. 593.

(*b*) *Garth v. Cotton*, 1 Ves. 554.

(*c*) *Woolmore v. Burrows*, 1 Sim. 512, see 527.